



**Kibathi & another (Suing as Administrators of the Estate of the Late
Milkha Wangui Wambura) v Kiarie & 3 others (Environment and Land Case
E180 of 2020) [2025] KEELC 6422 (KLR) (30 January 2025) (Judgment)**

Neutral citation: [2025] KEELC 6422 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT NAIROBI
ENVIRONMENT AND LAND CASE E180 OF 2020**

**J OMANGE, J
JANUARY 30, 2025**

BETWEEN

**MOSES KARIUKI KIBATHI 1ST PLAINTIFF
JAMES MUCHUGIA KIBATHI 2ND PLAINTIFF
SUING AS ADMINISTRATORS OF THE ESTATE OF THE LATE MILKHA
WANGUI WAMBURA**

AND

**DANIEL KIBATHI KIARIE 1ST DEFENDANT
DENNIS KARIUKI WAWERU 2ND DEFENDANT
JAMES KAHUGU MWANGI 3RD DEFENDANT
CHIEF LAND REGISTRAR-NAIROBI 4TH DEFENDANT**

JUDGMENT

1. The Plaintiffs suing as administrators of the estate of the late Milkah Wangui Wambura filed a suit dated 12th October, 2020 praying for the following orders;
 - a. A declaration that the Caution lodged by the 2nd and 3rd Defendants and registered by the 4th Defendant on Land Parcel No. Dagoretti/Mutuini/309 is illegal, wrongful and unlawful.
 - b. An order directing the 2nd, 3rd and 4th Defendant to remove the caution registered against Land Parcel No. Dagoretti/Mutuini/309 and free the registered against Land Parcel No. Dagoretti/Mutuini/309 and free the property for finalization sub-division, registration of titles and subsequent issuance of the title deeds to the Plaintiffs/beneficial owners



- c. An order directing that title deed emanating from Plot No. 1597 excised from Dagoretti/ Mutuini/309 belonging to the 1st Defendant be deposited in court upon subdivision and processing of Title deeds pending determination of his dispute with the 2nd and 3rd Defendant and determination of this suit.
 - d. A permanent injunction to issue restraining the 1st , 2nd and 3rd defendant, by themselves, agents, servants and/or any other persons claiming through them from interfering with the plaintiff's ownership and or usage of Plot Nos 1595, 1596, 1598, 1599 and 1600 as per mutation map dated 7th January 2019 all excised from title No. Dagoretti/Mutuini/309.
 - e. Costs and interest from the date of filing of this suit.
 - f. Any other relief that court may deem fit.
2. The Plaintiffs pleaded that vide letters of administration issued on 21st September, 2012 and confirmed on 26th November, 2012 they were confirmed as administrators of the estate of the late Milkah Wangui Wambura who was the registered proprietor of Land Title Number Dagoretti/ Mutuini/ 309 (hereinafter referred to as the suit property). That upon transmission registered on 20th September, 2017, the Plaintiffs were registered as the proprietors of the suit property.
 3. They deponed that in the course of sub dividing and transferring the suit property to the beneficiaries they discovered that there was a caution lodged on the suit property by the 2nd and 3rd Defendants who alleged that the 1st Defendant had sold them his portion of the land. The Plaintiffs urged the court to order the removal of the caution so as to allow the beneficiaries of the property to benefit from their portions.
 4. The 1st Defendant in his defence dated 10th December, 2020 denied that he participated in any fraud which resulted in registration of a caution on the suit property. He insisted that he had been wrongfully enjoined to the suit and indeed raised a Preliminary Objection which was dismissed by this court, differently constituted on 15th April, 2021.
 5. The 1st Defendant further pleaded that the issues in the present suit have already been raised in Nairobi CMCC NO 9005 and 8694 of 2019 which were struck out on 30th April, 2020 and 9th November, 2020. He insisted that he had not played a role in placing the caution.
 6. The 2nd and 3rd Defendants each filed a Defence and Counterclaim. The 2nd Defendant averred that he purchased a half an acre from the 1st Defendant and paid a deposit of Kshs 5,000,000 for the said portion. In the counterclaim in which he named the Plaintiffs and the 1st Defendant in the main suit as the 1st and 2nd Defendants respectively, he deponed that he was a bona fide purchaser of half an acre out of the portion of land known as Dagoretti/ Mutuini/ 309 from the counterclaim in the year 2012.
 7. That it was a term of the agreement that he was to be given his portion of the land upon completion of the administration of the estate. He blamed the Plaintiffs/ 1st Defendants in the counterclaim for failing to include him in the list of beneficiaries. He admitted that he registered the caution so as to safeguard his rights as a bona fide purchaser of land. He therefore sought an order that the 1st and 2nd Defendant do apportion half an acre from the suit property to him.
 8. The 3rd Defendant who is the 1st Plaintiff in the counterclaim on his part alleged that he paid a deposit of Kshs 1,000,000 to the 2nd Defendant in the counterclaim for a quarter acre which was to excised from Dagoretti/ Muiutuini//309. In spite of this, it is his contention that the Plaintiffs had left him out of the Succession process.



9. Moses Kibathi testified as PW1 on behalf of Plaintiffs. He produced a witness statement dated 12th October, 2020 and the list of documents. He told the court that he and his brother who are administrators of the estate of the late Milkah Wangui Wambura who was the registered owner of the suit property, were forced to file the instant suit after they discovered there was a caution registered on the property by the Defendants. He insisted that he was not involved in the sale of portions of the land to the 2nd and 3rd Defendants.
10. The 1st Defendant in his evidence confirmed that he sold part of Dagoretti/ Mutuini/309 to the 2nd Defendant. He told the court that it was a term of the agreement that if the sale did not go through, he was to refund the purchase price which he stated he is ready to refund. It was his evidence that he only received Kshs 3 million out of the purchase price of Kshs 11,000,000. He also admitted that he sold land to the 3rd Defendant. He denied ever registering a caution on Dagoretti/ Mutuini/ 309. Upon cross examination by counsel for the 2nd and 3rd Defendant he admitted that he received Kshs 4,000,000.
11. The 2nd Defendant reiterated the contents of the Defence and witness statement and stated that he has been waiting for the title so that he can remit the balance of the purchase price in accordance with the agreement with the 1st Defendant. He stated that the matters which the 1st Defendant alleged had been filed in the lower court had not been heard on merit, prompting the filing of an appeal.
12. DW 3, James Mwangi narrated to the court how he purchased part of the 1st Defendants land for Kshs 1,200,000. He said after the sale, the 1st Defendant became evasive. This prompted him and the 2nd Defendant to register a caution on the suit property.
13. The witness statement by the Land Registrar was admitted in evidence without calling the maker after all parties consented to its production.
14. All counsels save for counsel for the 4th Defendant filed submissions. Counsel for the Plaintiff submitted that the Plaintiffs were not involved in any transaction between the 1st Defendant and the 2nd and 3rd Defendants. As administrators of the estate of the late Milkah Wangui, they carried out their duties of sub dividing the mother title diligently and had pursuant to the court order dated 30th July, 2021 deposited the title to 1597 which was the title to the 1st Defendants portion in court.
15. Counsel for the 1st Defendant submitted on a number of issues first of which was to the effect that the 1st Defendant had not registered the caution on the suit property. Secondly counsel submitted that the 1st Defendant had no capacity to execute the sale agreements dated 17th May, 2009 and 18th April, 2012 which the 2nd and 3rd Defendant alleged that he had executed. He submitted that the two agreements were null and void. In any event counsel argued that the sale agreements were voidable under the [Land Control Act](#). Counsel submitted that under Section 7 of the [Land Control Act](#), the 1st Defendant was only required to refund the purchase price. Regarding the submission that the court should infer a constructive trust, counsel argued that since the 2nd and 3rd Defendant had not been put into possession, constructive trust could not apply.
16. Counsel took issue with the fact that the 2nd and 3rd Defendants had filed a counterclaim. Counsel submitted that a defendant cannot file a counterclaim against a co- defendant. Finally counsel submitted that this matter is res judicata as there are two other matters which have been determined in the lower court in respect of the same matter.
17. The court has considered the pleadings, the evidence herein and the submissions and authorities by counsels. The court notes that nearly all prayers sought by the Plaintiffs were allowed in the interlocutory application vide the Ruling delivered by Hon Lady Justice Komingoi on 22nd July, 2021.



The issue of the caution was settled amicably by the Plaintiffs and the 2nd and 3rd Defendants vide a mediation settlement agreement. The issue of costs and the issue of the deposit of the title deed to 1597 remained as the only outstanding issues from the issues raised in the plaint. Consequently the court distills the following issues for determination;

- i. Whether the court should order deposit in court of the title deed to Plot 1597 pending the resolution of the dispute between the 2nd and 3rd Defendant
 - ii. Whether the counterclaim has merit
 - iii. Who should bear the costs of the suit
18. The first issue is tied to the issue of the counterclaim. As such I will consider the two together. The first issue that was raised is that a Defendant cannot file a claim against a co defendant. The court was referred to persuasive authorities in this regard. However this case had unique circumstances as the 2nd and 3rd Defendant had already filed a case in the lower court by the time they were sued in this matter by entirely different parties who were not involved in the matter before the magistrates court. It is only in order that this court exercise the powers granted to it under Section 1 A and 1 B to consider the whole of the case before it.
19. In the counterclaim by the 2nd and 3rd Defendant they seek an order of declaration that they purchased the suit property belonging to the 1st Defendants in the pleaded shares. Having considered the evidence in totality I am satisfied that the 1st Defendant did sell them portions of the suit property. Indeed the 1st Defendant concedes as much. The question is whether the 1st Defendant had capacity to sell the suit property at the time. The property at the time was registered in the name of Milkha Wangui Wambura
20. The suit property which was the property of a deceased person was under the protection of the Law of Succession Act. Section 82 of the Law of Succession Act defines Powers of personal representatives thus; Personal representatives shall, subject only to any limitation imposed by their grant, have the following powers—
- a. to enforce, by suit or otherwise, all causes of action which, by virtue of any law, survive the deceased or arising out of his death for his personal representative;
 - b. to sell or otherwise turn to account, so far as seems necessary or desirable in the execution of their duties, all or any part of the assets vested in them, as they think best:
- Provided that—
- (i) any purchase by them of any such assets shall be voidable at the instance of any other person interested in the asset so purchased; and
 - (ii) no immovable property shall be sold before confirmation of the grant;
- (c) to assent, at any time after confirmation of the grant, to the vesting of a specific legacy in the legatee thereof;
21. The section is explicit that an administrator shall not dispose of immovable property before confirmation of grant. As such the agreement contravened the law. The courts have addressed this unfortunate state of affairs that is all too common severally. In the case of Estate of Isaac Kaburu Marete (deceased) (2017) eKLR Justice Gikonyo had this to say.

Courts have said time and again- and I will not be tired of stating it again- that, under section 82(b) (ii) of the law of Succession Act, sale of immovable property of the estate



before confirmation of grant is prohibited. Again, under section 55 of the Law of Succession Act, the law has placed restriction on distribution of any capital assets of the estate before confirmation of grant. Therefore, no person shall have any power or legal authority or capacity to sell immovable property of the deceased before confirmation of grant. As such, any such attempted sale of immovable property of the estate before confirmation of grant shall be null and void for all purposes and intents. I need not also state that beneficial interest of a person beneficially entitled to a share in the estate must be identified and be capable of registration in his name before it could be sold or pledged as security or exchanged with another type of property. It is during confirmation hearing that the court establishes the respective identities and shares of persons beneficially entitled, and when confirmed the grant specifies such persons and their respective shares in the estate. See section 71 of the Law of Succession Act. Therefore, before confirmation, the interest of the beneficiary remains amorphous and entangled within the estate; and vested in the administrator or executor as the estate property as by law stated.

22. On the fate of such a transaction the court went further to quote and I reiterate, Lord Denning M.R. in the case of *Macfoy V United Africa Co. Ltd* [1961] 3 All ER 1169 at pg. 1172 that:

“...If an act is void, then it is in law a nullity. It is not only bad, but incurably bad. There is no need for an order of the court to set aside. It is automatically null and void without more ado, though it is sometimes convenient to have the court declare it to be so. And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse”.

23. The only order the court can make is that the 2nd and 3rd Defendant be refunded the amounts they had paid. The court thus issues the following orders;
- a. The 2nd and 3rd Defendants are to be refunded the amounts of Kshs 4,000,000 and Ksh 1,200,000 together with interest from date of filing suit
 - b. The title shall only be released to the 1st Defendant after the amount is paid to the 2nd and 3rd Defendant
 - c. All the parties are to bear their costs for the suit

JUDGMENT SIGNED, DATED AND DELIVERED VIA MICROSOFT TEAMS THIS 30TH DAY OF JANUARY 2025

JUDY OMANGE

JUDGE

In the presence of:

Mr. Obuya for Ms Munyasya for Plaintiff

Mr. Ndurumo for 1st defendant

Court Assistant Meryline

